

and prays that the said office objection being not sustainable in the present case be over-ruled.

4. Initially the titled First Appeal bearing R.F.A. No. 39 of 2023 under Section 13 of the Gas Theft Control and Recovery) Act, 2016, along with C.M.No. 1 of 2023 for interim relief was filed at the Multan Bench of this Court challenging the judgment and decree dated 03.01.2023 passed by the learned Additional District Judge, Lodhran, whereby suit of the respondent for recovery of Rs. 23,184,580/- was decreed. The said appeal was fixed in the Court on 06.02.2023 and was admitted to regular hearing, notice was issued in the Appeal as well as application for interim relief and record of trial court was requisitioned. On the same date, learned Legal Advisor of the respondent also entered appearance in the Court on their behalf and service was complete. However, due to change of territorial jurisdiction relating to matters arising out of District Lodhran, the said Appeal was transferred to the Bahawalpur Bench of this Court and was renumbered as R.F.A. No. 39-LD of 2023. The appellant filed C.M.No. 1824 of 2025/BWP in C.M.No. 1-LD of 2023/BWP for suspension of order dated 28.05.2025 issued and auction proceeding dated 22.03.2025 commenced by the learned executing/trial court during the pendency of said Appeal, in which notice was issued to the other side for a date to be fixed after Eid-ul-Fitr but actual date was not fixed, whereafter the C.M.No. 1824 of 2025/BWP was fixed for hearing on 17.04.2025, when instead of the same, the main case, which had not been fixed was dismissed for non-prosecution. The operative part of the said order is reproduced below:

“Nemo.

No one appeared on behalf of the appellant despite repeated calls since morning. Name of learned counsel for the appellant is duly reflected in today’s cause list but there is no intimation regarding his absence.

2. Dismissed due to non-prosecution.”

5. The applicant has now filed an application for its restoration upon which the office has raised aforementioned objection relating to its maintainability as per Circular dated 28.02.2024 issued by this Court. The operative part of the said Circular is reproduced below:

“LAHORE HIGH COURT, LAHORE
CIRCULAR

It is informed that SMS is a technology-based service, which may fail due to various reasons such as ‘mobile not in range, mobile turned off, ported numbers problem and technical faults etc.’ which results in dismissal of cases due to non-prosecution (DNP) and cause inconvenience.

2. The learned Counsels and all concerned may use / consult alternative modes of information, such as LHC website (www.lhc.gov.pk), LHC Mobile App, through LHC Bar and Helpline (1134) etc., regarding intimation / information about their cases, provided by this Court in order to avoid inconvenience.

-sd-

(IFTIKHAR AHMAD)

Deputy Registrar-IT(S&W)

For Registrar

Endst. No. 12 L-10/Comp. Dated 28.02.2024.”

6. While “circular” does not have a specific legal definition, it is used in legal contexts to describe documents that are widely circulated or sent to multiple recipients for information or instructions. In legal terminology, a “circular” or “circular letter” refers to a letter, circular, or other written communication that is widely disseminated among a group of people, often for informational or instructional purposes. It is a method of communicating information to a large and

diverse group, such as in a government administration, a business, or an organization and may also be addressed to public at large. A circular might contain official information, instructions, updates, new policies or policy changes disseminated to employees or other stakeholders or may share news or events. In essence, a circular letter is a form of written communication designed for broad distribution and information sharing, and its usage can extend into legal contexts as a description of a widely distributed document.

7. The question for determination before this Court is whether the aforementioned Circular bars filing of an application for restoration of a case which has been dismissed for non-prosecution. The afore-referred Circular only conveys to the lawyers and concerned, which include the litigants and public at large that SMS being a technology based service may fail due to various reasons mentioned in the Circular and they may use/consult alternate modes of information mentioned therein regarding intimation/information about their cases to avoid inconvenience due to dismissal of their cases for non-prosecution where SMS is not timely received. The said Circular does not convey that the legal remedy would be barred under any provision of law. A Circular issued by the Registrar of a High Court regarding intimation of Mobile App, SMS, notification or similar digital services primarily serves as an administrative instruction to facilitate communication and transparency. It does not have the force of law, does not create modify or extinguish substantive legal rights, obligations or liabilities, and is not enforceable as a judicial order. Its legal value is limited to procedural guidance non-compliance of which by litigant or

counsel typically does not attract legal penalties unless the Circular is backed by a specific Law, Rule or Order of the court.

8. The ground raised by the applicant in restoration application is that the absence of the applicant was not intentional rather the office belatedly conveyed through SMS on 18.04.2025 that the case had been fixed for hearing on 17.04.2025. The said ground raised by the applicant for restoration of the case is required to be determined on judicial side and nothing available in the afore-referred Circular issued by the office of this Court bars filing an application for restoration of the case that was dismissed for non-prosecution and only provides information to the parties and their counsel to be vigilant in pursuit of their cases pending before this Court, which Circular even otherwise being a Circular on the administrative side does not have status of law or judicial order and cannot bar a remedy available to the applicant provided by law. Besides the application for restoration even otherwise ought to be decided on its own merits especially when Article 10-A of the Constitution of Pakistan guarantees the right to a fair trial and due process for all citizens of Pakistan and Article 4 of the Constitution guarantees protection of law and right of the parties to be treated in accordance with law. The said view of this Court is also supported by the learned law officers, who state that the said Circular does not bar filing of restoration application, which ought to be decided on merits.

9. In view of the above, office objection is **over-ruled**. Office is directed to number the C.M and place the same for hearing on judicial side for today.

C.M.No. 3266 of 2025/BWP

10. This is an application for restoration of the main case, which was dismissed for non-prosecution vide order dated 17.04.2025.

11. The grievance of the applicant is that SMS conveying the fixation of the case on 17.04.2025 was sent by the office on 18.04.2025, which was received on the said date by the counsel for the applicant, when the case had already been dismissed for non-prosecution on 17.04.2024 and non-appearance of the applicant and her learned counsel was not intentional. On 17.04.2025, none of the parties had entered appearance and the instant application for restoration has been filed within time and is supported by an affidavit as well as printout of SMS message received by the applicant on 18.04.2025. The printout of the SMS shows that only C.M.No. 1824 of 2025 was listed for hearing on 17.04.2025 and only the said C.M had been listed for hearing in the cause list issued by the Court whereas the main case had not been listed out yet inadvertently the main case was dismissed for non-prosecution instead of the said application. Although the applicant ought to have been vigilant in pursuing the aforesaid Appeal yet it is noticeable that despite notice issued by the Court, the respondents, who were previously represented, had also not entered appearance in the case on the date when the same was dismissed for non-prosecution, hence, it cannot be ruled out that the notice/intimation for fixation of case was belatedly issued/received, which is corroborated by the late receipt of SMS by the counsel for the applicant. Moreover, as the main case had not been fixed on the said date and only application i.e. C.M.No. 1824 of 2025/BWP was listed for hearing, hence,

dismissal of main Appeal for non-prosecution was not justified rather the said order seems to have been inadvertently passed. Needless to mention that it is settled proposition of law that an act of court or its functionary should not prejudice the rights of any party and it is in the interest of justice to decide the matters on merits instead of dismissing the same on technical grounds, hence, in the interest of justice while dispensing with the notice to the respondents, who themselves were unrepresented on the fateful day, lest it may unnecessary delay the matter, the instant application, which is supported by an affidavit, for reasons mentioned therein coupled with aforementioned observations of this Court is ***allowed*** and main Appeal is ***restored*** to its original number and status.

12. Let the main Appeal along with all the pending applications be listed for hearing after notice to the other side for **19.06.2025**.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan

APPROVED FOR REPORTING